

Rohit Kumar Sachdeva S/O Hukum Chand ... vs State Of Uttarakhand on 12 February, 2013

Author: Prafulla C. Pant

Bench: Prafulla C. Pant

IN THE HIGH COURT OF UTTARAKHAND AT
NAINITAL
Criminal Writ Petition No. 90 of 2013

Rohit Kumar Sachdeva S/o Hukum Chand Sachdeva, R/o
Anand Morya Model Colony Ranipur, P.S. Jwalapur,
District Haridwar

.....Petitioner

Versus

1. State of Uttarakhand, through its Secretary Home, Haridwar.
2. S.H.O. of Police Station- Kankhal, Distt. Haridwar.
3. Smt. Nisha Sachdeva W/o Rohit Kumar Sachdeva, R/o 1st floor, IIInd Flat, Sandesh Nagar, Kankhal, Haridwar, District Haridwar.

.....Respondents

Mr. Narendra Bali, Advocate, present for the petitioner.
Mr.Vipul Painuly, A.G.A., present for the State.

Hon'ble Prafulla C. Pant, J.

Urgency Application No. 470 of 2013 is allowed.

2) Heard.

3) By means of this petition moved under Article 226 of Constitution of India, the petitioner has sought quashing of the First Information Report dated 17.01.2013, registered as Crime/FIR No. 3 of 2013, relating to offences punishable under Section 498A and 420 of I.P.C., at Police Station Kankhal, District Haridwar.

4) It is alleged by the respondent No.3 Nisha Sachdeva (complainant) that her husband (present petitioner) fraudulently, got her signatures in the divorce papers. Learned counsel for the petitioner pleaded that the impugned First Information Report has been lodged only due to matrimonial discord between the respondent No.3 and the petitioner, as it appears that respondent No.3 is no more interested in prosecuting the petition filed under Section 13B of Hindu Marriage Act, 1955. It is further argued that there was no occasion on the part of the petitioner to fraudulently obtain

signatures of the respondent No.3 in the divorce papers as both of them were living separately from each other.

5) Admit the petition.

6) Learned counsel for the State prays for and is

allowed six weeks' time to file the counter affidavit.

7) Issue notice to respondent No. 3 Nisha Sachdeva, who may also file her counter affidavit within a period of six weeks.

8) Having considered submissions of learned counsel for the petitioner and learned counsel for the State, as an interim measure, it is directed that the petitioner Rohit Kumar Sachdeva shall not be arrested in connection with Crime/FIR No. 3 of 2013, relating to offences punishable under Section 498A and 420 of I.P.C., at Police Station Kankhal, District Haridwar, during investigation, provided he cooperates with the investigating agency (Interim Application No. 754 of 2013, stands disposed of).

9) List after six weeks.

(Prafulla C. Pant, J.)
Vacation Judge

12.02.2013
JM